CalWORKs Program Guide: F. Child Care Notices of Action

COUNTY OF SAN DIEGO HEALTH & HUMAN SERVICES AGENCY - CALWORKS PROGRAM GUIDE

Effective Revision Date: 2026-01-01

Section 1

COUNTY OF SAN DIEGO HEALTH AND HUMAN SERVICES AGENCY
CALWORKS PROGRAM GUIDE ? SECTION 10-010: CHILD CARE
TITLE: F. NOTICES OF ACTION FOR STAGE ONE CHILD CARE

Section 2

1. POLICY BACKGROUND & PURPOSE
In accordance with CDSS MPP EAS 47-400 and state due process mandates, County HHSA must provide formal written Notices of Action (NOAs) to both the client and the child care provider whenever child care benefits are approved, denied, changed, or terminated.

Section 3

2. DETAILED REGULATORY STANDARDS & NOTICE PERIODS
? Timely Notice Standards: Any action that reduces child care hours, lowers reimbursement rates, or terminates child care requires a minimum 10-day advance notice before the effective date of the action.
? Adequate Notice for Approvals: Approvals and rate increases require adequate notice delivered to the client and provider on or before the effective date.
? Concurrent Provider Notice: The child care provider must receive a concurrent copy of any notice affecting payment authorization, hours of care, or termination of provider reimbursement.
? Required Notice Elements: Every notice must state:
(1) The specific regulatory action being taken;
(2) The legal citations under CDSS MPP EAS Chapter 47;
(3) The exact dollar amount or hours affected;
(4) The client’s right to request a formal State Fair Hearing and continue receiving child care benefits pending the hearing outcome (Aid Paid Pending).

Section 4

3. CASEWORKER OPERATING PROCEDURES & VERIFICATION CHECKLIST
? System Automation: Generate the appropriate CalSAWS NOA template (approval, modification, or termination).
? Dual Mailing: Verify that notices are generated and dispatched simultaneously to the participant’s mailing address and the child care provider’s facility address.
? Hearing Request Processing: If the client appeals within the 10-day notice window,

immediately maintain child care authorizations and notify the child care payment contractor.